

Legalese

According to the Hindu Succession Act (HSA), if a woman's property is self-acquired, her husband is no more, and she has no children, that property goes to the husband's heirs

IF A WOMAN DIES INTESTATE

Her self-acquired property

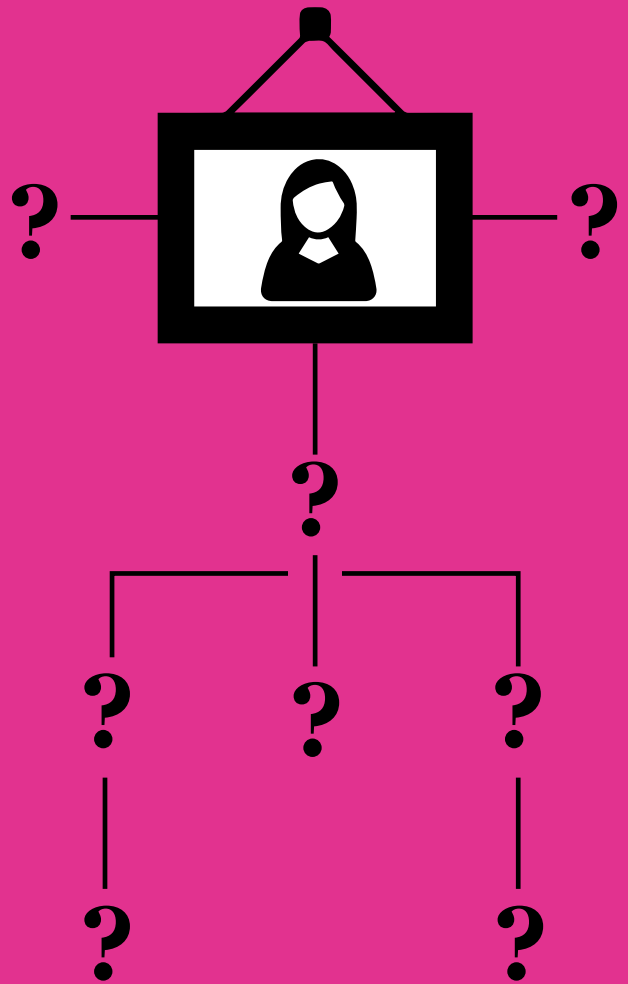
- She has children → Property goes to them
- No children → Property goes to the husband
- Husband passes away → Ownership is transferred to her mother-in-law

Inherited property

- She has children → Property goes to them
- No children → Ownership is transferred to the heirs of her father or mother

IF A MAN DIES INTESTATE

- His property → Mother, children and widow get equal shares
- Widowed wife remarries → She gives up her claim on her ex-husband's properties



hind his first wife, a second wife with whom he lived for 20–25 years, and her four children. The first wife had no children of her own. The apex court first considered the question of whether the legal widow of the deceased was the first or second wife. In this case, the Supreme Court considered the second wife a live-in partner because a second marriage without divorce in the first is considered a live-in relationship. The court, though, recognised the right of a live-in partner to claim a succession certificate vis-à-vis the first wife.

However, the court held that though the second wife was a long-time partner and nominee of the deceased, she was not a legal heir since her marriage was not legally valid. And since she wasn't a legal heir, she was not entitled to inherit the deceased's property. However, the

deceased's children were recognised as his undisputed legal heirs and were given inheritance rights.

WHERE THERE'S A WILL

Over the years, Indian laws have striven to remove gender-based discrimination in inheritance. Despite this, there is clearly a long way to go. Patriarchal biases and interpretations of the law still result in many women being deprived of their fair share.

To ensure that the right person receives a share of what was owned by a woman on her death, it is best that she prepares and registers a will declaring all that is to be transferred to her heirs. A will is not a tool for wealth creation, but it safeguards the interests of a working woman who has created wealth and acquired assets during her